

Raju v. Dakshinanchal Vidyut Vitran Nigam Ltd. & Another

Allahabad High Court · Division Bench · 15 October 2024 · 2024:AHC:163571-DB · WRIT - C No. 25386 of 2024 · **Writ petition disposed of; permanent disconnection quashed, reinstallation directed within 7 days, without prejudice to a fresh show-cause notice**

HEADNOTE

The U.P. Electricity Supply Code, 2005 does not permit permanent disconnection of electricity supply — even on a ground such as alleged unauthorized use of electricity at another premises — without any prior notice or show-cause opportunity to the consumer. Where such a disconnection is carried out without notice, it is arbitrary and without authority of law, and the connection must be reinstated, without prejudice to the licensee's liberty to thereafter issue a show-cause notice and act in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::disconnection-notice-requirement

Permanent disconnection without prior notice, even where premised on alleged unauthorized use at another premises, is arbitrary and unauthorized under the Supply Code; reinstatement is directed, without prejudice to a subsequent show-cause notice

QUESTION

Can a licensee permanently disconnect a consumer's electricity supply, on the ground that the electricity was being used at another (unauthorized) premises, without first issuing any notice or show-cause opportunity to the consumer?

HOLDING

No — the Supply Code does not permit disconnection of this nature without any notice whatsoever to the consumer. The licensee's own counsel conceded no show-cause notice had been given before the permanent disconnection (carried out 11.6.2024) on the stated ground of unauthorized use at another premises. The Court, without going into the merits of the unauthorized-use allegation, directed reinstallation of the permanently disconnected connection within 7 days, while leaving it open to the licensee to thereafter issue a show-cause notice and proceed in accordance with law, including against the petitioner on the complaint that had been filed. ¶ paras 2-12

LIMITING FACTS

The petitioner's electricity connection was permanently disconnected on 11.6.2024 without any notice; the licensee alleged an enquiry found the electricity being used at another premises (unauthorized use), but conceded no show-cause notice preceded the disconnection.

PRINCIPLE TAGS

notice-required-before-permanent-disconnection

Permanent disconnection of electricity supply — even where grounded in an allegation of unauthorized use — requires prior notice/show-cause opportunity under the Supply Code; disconnection without notice is arbitrary and unauthorized, warranting reinstatement without prejudice to a subsequent lawful show-cause process.

¶ paras 5-6, 11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IN FACT USED THE ELECTRICITY CONNECTION AT AN UNAUTHORIZED PREMISES

Not decided; the Court expressly declined to go into the merits, leaving the department at liberty to issue a fresh show-cause notice.

¶ para 6

